SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: April 2, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8.E

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINE 1	24CV450570	Star Union Technology et al vs Capital Asset Exchange and Trading, LLC	**Motion: Judgment on Pleadings** Scroll down to Line 1 for Tentative Ruling.
LINE 2	24CV44160	Wells Fargo Bank, N.A. vs Ismael Ortiz	**Motion for Summary Judgment** On July 14, 2025, plaintiff Wells Faro Bank, N.A. filed a Motion for Summary Judgment in this breach of contract/collections action. The motion was accompanied by a proof of service via mail service to defendant Ismael Ortiz on July 11, 2025. Per Code of Civil Procedure section 1005(b) opposition papers were due on March 13, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). Where a responding party does not file an opposition to a motion to a summary judgment, the moving party must still meet its initial burden of proof. (*Thatcher v. Lucky Stores, Inc.* (2000) 79 Cal.App.4th 1081, 1086-86; *CDF Firefighters of Maldonado* (2008) 158 Cal.App.4th 1226, 1239, fn. 2). Pursuant to Code of Civil Procedure section 437c, subdivision (c), a motion for summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." Here, the plaintiff has provided proper notice and shown sufficient evidence to justify the grant of a summary judgment in its favor; the motion for summary judgment is GRANTED. Moving party to prepare the Order.

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LAW AND MOTION TENTATIVE RULINGS

LINE 3	24CV449741	Michelle Kraus vs Zola Restaurant et al	**Motion to Compel Plaintiff to Demand for Inspection and Production, Set Two** On September 24, 2025, defendant G.B. Chefing, LLC DBA Zola Restaurant filed a motion to compel plaintiff, Dr. Michelle Kraus to produce documents, set two. The motion was accompanied by a proof of service via electronic service and mail service to the plaintiff on September 23, 2025. Per Code of Civil Procedure section 1005(b) opposition papers were due on March 13, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). **I. BACKGROUND** The Court has carefully reviewed the moving papers including a notice of motion, memorandum of points and authorities, and Declaration of Sara K. Batres in support of the motion with Exhibits A-B attached (totaling 16 pages); and the pleadings. On July 21, 2025, the defendants served the plaintiff with a demand for inspection and production of documents, set two. (Declaration of Batres and Exhibit B) via mail service. The responses were due on August 25, 2025. Plaintiff did not file responses or request an extension of time to respond. **II. LEGAL STANDARD** Pursuant to California Code of Civil Procedure sections 2030.260(a), 2031.260(a), and 2033.250(a), discovery responses are due thirty (30) days after service of the request unless the parties stipulate or the court orders otherwise. If a responding party fails to respond in time, the propounding party may move for an order compelling the responses or